4. who is a child or a grandchild or a great grandchild of such a citizen; or

2. a person, who is a minor child of a person mentioned in above clause (a); or

3. a person, who is a minor child, and whose both parents are citizens of India or one of the parents is a citizen of India; or

4. spouse of foreign origin of a citizen of India or spouse of foreign origin of an Overseas Citizen of India Cardholder and whose marriage has been registered and subsisted for a continuous period of not less than two years immediately preceding the presentation of the application.

But, a person, who or either of whose parents or grandparents or great grandparents is or had been a citizen of Pakistan, Bangladesh or such other country as the Central Government may specify, shall not be eligible for registration as an Overseas Citizen of India Cardholder.

II. Conferment of Rights on Overseas Citizen of India Cardholder

1. An overseas citizen of India cardholder shall be entitled to such rights, as the Central Government may specify in this behalf. These are mentioned in Table 7.1 (under serial number 7).

2. An overseas citizen of India cardholder shall not be entitled to the following rights (which are conferred on a citizen of India)—

    1. He/she shall not be entitled to the right to equality of opportunity in matters of public employment (Article 16).

    2. He/she shall not be eligible for election as President (Article 58).

    3. He/she shall not be eligible for election as Vice-President (Article 66).

    4. He/she shall not be eligible for appointment as a Judge of the Supreme Court (Article 124).

    5. He/she shall not be eligible for appointment as a Judge of the High Court (Article 217).

    6. He/she shall not be entitled for registration as a voter.

    7. He/she shall not be eligible for being a member of the House of the People or of the Council of States.

    8. He/she shall not be eligible for being a member of the State Legislative Assembly or the State Legislative Council.

    9. He/she shall not be eligible for appoint ment to public services and posts in connection with affairs of the Union or of any State except for appointment in such services and posts as the Central Government may specify.

III. Renunciation of Overseas Citizen of India Card